

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

**Present:
Mr. Justice Ashish Ranjan Das**

Civil Revision Case No. 09 of 2016

In the matter of:

Olympia Palace Restaurant Limited represented by
its partners-Md. Jamil Uddin and another
..... Petitioners

-Versus –

Far East Islamic Life Insurance, Co. Ltd.
Represented by its Managing Director, 35,
Topkhana Road, P.S.-Shahbagh, Dhaka and others
..... Opposite parties.
Mr. Md. Golam Arshed, Advocate
.....For the Petitioner.
Ms. Salma Hai Tuny. Advocate
.....for the opposite parties.

Heard and judgment on: 27.06.2018.

Ashish Ranjan Das, J.:

This has been an application under section 115(1) of the Code of Civil Procedure calling in question the propriety of the order dated 07.12.2015 and 22.12.2015 passed by the learned District Judge, Dhaka in Rent Control Miscellaneous Appeal NO. 303 of 2015 refusing the prayer of the petitioner to restore water connection.

I have heard the learned Advocates for the contesting parties and perused the application along with the annexures.

Admitted position is that the petitioner has been a tenant and the premises has been owned by the opposite party and for the purpose they reached an agreement Annexure-A. However, on and on dispute arose between the parties for which the petitioner have brought Rent Control Case No. 61 of 2015 in the court of House Rent Controller and Ex-Officio, Assistant Judge, 4th Court, Dhaka. It appears that at the time of issuance of the Rule this court passed an interim order directing the opposite party to restore the electricity and water connection to the tenanted suit premises that is Olympia Palace Restaurant Ltd. 36, Topkhana Road, 2nd floor, Police Station-Shahbagh, Dhaka within 24 hours from the time of receipt of the order.

The above interim order was challenged by the opposite party in Civil Petition for Leave to Appeal No. 367 of 2016 wherein their Lordships finally were pleased to direct this court to decide the revisional application on merit within a definite time.

Now the position is that the petitioner has admittedly been a tenant in the suit premises under the opposite party and depositing rent in the Court of Rent Controller by bringing a regular case. But meanwhile the landlord snatched away utility connections like electricity and water. The learned Advocate for the petitioners agitated that the landlord opposite party has illegally snatched away utility connections while the reply from the other side is that it was done so by the concerned utility services authority of the Government. This

has been a disputed question of fact not to be looked into in this forum.

Now since at the time of issuance of the Rule an ad-interim order was passed directing the opposite party to restore electricity and water connections on an urgent basis, that is within 24 hours and since the Hon'ble Appellate Division while sending down the matter did not specifically mention that such ad-interim order passed at the time of issuance of the Rule to remain stayed. It is evident that the ad-interim order passed dated 12.01.2016 has been standing good. But as has been noted earlier that those disputed facts require to be resolved by the court below and in that event it would be lawful and just to send down the matter to the learned lower appellate court directing him to decide the matter within a sharp definite time and in the mean time as has been hinted above the ad-interim order for restoration of utility services passed by this court dated 12.01.2016 shall continue till disposal of the appeal in the lower appellate court. Hence the learned District Judge, Dhaka the lower appellate court is directed to decide the Miscellaneous Appeal No. 303 of 2015 within 60 days from the date of receipt of a copy of this order and meanwhile to ensure that the order passed by this court dated 12.01.2016 for restoration of electricity and water supply has been complied with. However, this observation and direction shall have no bearing upon the merit of the case while deciding the appeal. With the observation and direction the Rule is disposed of.

However, there is no order as to costs.

The order of direction granted at the time of issuance of the Rule is hereby vacated.

The office is directed to communicate this judgment and order to the Courts below at once.

Justice Ashish Ranjan Das.